



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

JUN 19 1997

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 11906

EXPIRATION DATE: October 31, 1997

1. GRANTEE: Rhone-Poulenc Ag Company  
Research Triangle Park, NC
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of approximately 10,000 UN 4G fiberboard boxes that have been inadvertently marked UN4G/Y22.8/S/97 instead of UN4G/Y33/S/96, for the shipment of a division 6.1 material. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.203(a); 172.301(c) and 178.503(a) 5 (ii).
5. BASIS: This emergency exemption is based on the application of Rhone-Poulenc Ag Company dated June 13, 1997, submitted in accordance with 49 CFR 107.117, based on a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description<br>-- proper shipping name | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Carbamate pesticide, solid,<br>toxic                       | 6.1                          | UN2757                        | II               |

7. PACKAGING AND SAFETY CONTROL MEASURES: Packagings prescribed are approximately 10,000 UN 4G fiberboard boxes that have been inadvertently marked UN4G/Y22.8/S/97 instead of the required UN4G/Y33/S/96.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The marking requirements of 49 CFR 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

JUN 19 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous  
Materials Safety, Research and Special Programs Administration,  
Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office.  
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